

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-01

Visual Comfort & Co. v. COSCO Shipping Lines Co. Ltd.

**RESPONDENT’S FIRST MOTION TO COMPEL ADEQUATE RESPONSES TO
REQUESTS FOR ADMISSION AND INTERROGATORIES**

Respondent COSCO Shipping Lines Co., Ltd. (“COSCO” or “Respondent”) hereby moves pursuant to 46 C.F.R. §§ 502.147(a)(6) and 502.150 to compel Complainant Visual Comfort & Co. (“VCC” or “Complainant”) to serve new responses to certain Requests for Admission and Interrogatories propounded by COSCO but inadequately responded to by VCC.¹

INTRODUCTION

On March 27, 2024, COSCO served both Requests for Admission (RFAs) and Interrogatories (INTs) on VCC. VCC responded on April 26, 2024. Many of these responses consisted of specious objections and/or entirely inadequate answers. Counsel for COSCO has conferred with Counsel for VCC and has provided a specific list of deficiencies (COSCO First Notice of Deficiencies) (**Attachment C**).

¹ COSCO is concurrently filing a motion to compel production of documents. VCC responded to our Notice of Deficiencies as we were going to press with these Motions, and we have not been able to review it carefully, but it suggests the deficiencies may be able to be resolved by Counsel. We nevertheless file the motion to have it on the record before May 31, as ordered by the Presiding Officer. We expect that some, perhaps many, maybe all, of our complaints may yet be satisfied by VCC, and we will of course withdraw any discovery responses that no longer need the attention of the Presiding Officer.

VCC has not yet responded to the list of deficiencies, and we have not heard anything further from VCC since the meet and confer call on Tuesday, May 22, 2024.

We hope that further discussions may resolve some of the matter in dispute without intervention from the Presiding Officer but given the tenor of VCC's response to date and the requirement that motions to compel be filed before May 31, 2024, we find it necessary to address some of the insufficiencies of VCC's response and respectfully request that the Presiding Officer order the timely production of new responses, unless VCC chooses to abandon allegations for which it cannot provide facts.

Before discussing the specific COSCO RFAs and INTs, we note that the Notice of Deficiencies COSCO sent to VCC was selective, ignoring certain less critical responses. In this Motion, we further narrow the responses for which we press. As one example, several of the RFAs asked about the relationship between COSCO and VCC, to which VCC gave evasive answers. But because VCC now pursues reparations based on an assignment of claims from R.I.M. Logistics (RIM), the dispute is now about the relationship between COSCO and RIM, and not the (nonexistent) relationship between COSCO and VCC. Accordingly, COSCO does not ask the Presiding Office to order those RFAs to be corrected.

SPECIFIC REQUESTS

A. RFAs

1. **RFA8** asks VCC to admit "that Complainant did not use COSCO's FMC-recognized process for seeking relief for waiver/credit or refund of charges." VCC responded:

"VCC objects to this request as seeking information in the possession of, known

to, or otherwise equally available to Respondent. As alleged in footnote 1 the Amended Complaint, VCC lacked the particular documentation COSCO required in order to utilize this process.”

The objection in the first sentence is invalid because RFAs, unlike interrogatories, are not designed to learn information, but rather to identify issues as to which there is no dispute, so they may be treated as established for purposes of briefing. Accordingly, there is no basis for a “figure it out yourself” response. RFAs call only for responses of “Admitted” (or “Admitted in Part” with explanation), “Denied” (or “Denied in Part” with explanation) or that, after reasonable inquiry, that the Complainant lacks sufficient knowledge or information to enable it to admit or deny. The second sentence is improper because it does not admit or deny the RFA itself, but instead responds to a separate matter -- why VCC did not use COSCO’s process for disputing charges.

Although this implicitly admits the RFA, it does not do so directly. COSCO has no objection to VCC explaining why it did not use COSCO’s process, but it must first admit or deny the RFA. Simply adding “Admitted” before the existing answer would be sufficient.

B. INTs

Many of VCC’s responses share what we call General Deficiency 1 (GD1), which is VCC’s oft-repeated objection that a question is “premature.” This is not a valid objection. VCC is required to answer each interrogatory as of the date of the answer, with any evolving information to be provided pursuant to the obligation to update. 46 C.F.R. 502.141(k). Saying that a request is premature denies COSCO information currently available to VCC that COSCO needs to meaningfully depose VCC (as well as RIM) employees. Such responses therefore inherently either prevent or delay depositions

1. INT3 asks VCC to “identify all documents Complainant proposes to use to support any allegation made in the Complaint or to otherwise support its positions.” VCC responded:

“Complainant VCC objects to this Interrogatory to the extent it seeks information protected by the attorney-client privilege and/or work product doctrine. Complainant VCC also objects to this Interrogatory as premature, as it seeks information that will not be fully known until after discovery is complete. Subject to and without waiving the foregoing objections, Complainant VCC states that it will identify non-privileged documents responsive when they are compiled and known.”

The objection of prematurity is invalid for the reasons given in GD2.

2. INT8 asks VCC: “With respect to Allegation 2, state in detail every significant fact upon which you rely to support the allegation that ‘[G]lobal ocean carriers, including COSCO unjustly and unreasonably exploited customers, vastly increasing their profitability at the expense of shippers, increasing the cost of freight and goods sold to the American public in general.’” VCC responded:

“VCC objects to the vague and undefined use of the term “significant fact” as not setting forth a clear description of information requested. VCC further objects to this Interrogatory as not reasonably calculated to lead to the discovery of admissible evidence, seeking a compilation of information protected by the attorney-client privilege and/or work product doctrine, requesting a legal conclusion, and purporting to require VCC to describe written documents that speak for themselves. Complainant VCC further objects to this Interrogatory as requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control.”

VCC’s objections are all specious, including the frivolous claim or non-relevance. The claim of non- relevance is in fact frivolous. The INT asks VCC about a specific allegation in the Complaint, verified as true by the Chief Operating Officer of VCC and certified by Counsel for VCC who signed the Complaint. 46 C.F.R. § § 502.6, 502.62(a)(1). VCC must, therefore, either abandon the Allegation or divulge the facts on which it is based. The claim that INT8 asks VCC

to describe written documents is equally unfounded. INT8 asks about facts, not documents.² Finally, the claim that the term “significant facts” is vague is unsupported. As explained in COSCO’s Notice of Deficiencies, the Commission has approved of this type of phrase as a way to reasonably avoid a request for “all” facts. See, e.g., Docket No. 21-17, *Ocean Network Express Pte. Ltd. and Ocean Network Express (North America), Inc. – Possible Violations of 46 U.S.C. § 41102(c)*, 2022 WL 1485900, at *4 (Order on Motions to Compel and Dismiss)(ALJ 2022)(Respondent is “entitled to know the principal or material facts and documents which support the allegations”). We have no doubt that VCC can determine what facts it deems significant, using such factors as materiality and relevance. We view “significant” to mean facts that VCC might put into the body of its briefs, ignoring footnotes.

3. INT9 asks VCC to “Identify precisely and explain in detail what ‘acts and omissions’ of Respondent are asserted in Allegation 12 to constitute unreasonable refusals to deal or negotiate with VCC.” VCC responded:

“VCC objects to this Interrogatory as premature, seeking a compilation of information protected by the attorney-client privilege and/or work product doctrine, requesting a legal conclusion, and purporting to require VCC to describe written documents that speak for themselves. Complainant VCC further objects to this Interrogatory as requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control.”

VCC’s objections are again specious. The assertion of prematurity is rebutted by GD1. The claim about describing documents is disingenuous for the same reasons as discussed regarding INT8. And as with INT8, INT9 asks about facts attested and certified. Accordingly, VCC must either divulge the facts on which Allegation 12 is based or abandon it. Finally, VCC’s objection

² We note that because the COSCO request is for “facts,” not communications with counsel, VCC’s repeated invocation of the attorney-client privilege (here and elsewhere) is without foundation.

about an alleged legal conclusion is specious, both because INT9 does not ask for legal conclusions and because 46 C.F.R. § 145(a)(2) specifically states that an “interrogatory is not objectionable merely because it asks for an opinion or contention that relates to . . . the application of law to fact.”

4. INT10 asks VCC: “With respect to Allegation 12, identify all significant facts relating to the statement in Allegation 12 that Respondent’s conduct amounted to an unreasonable refusal to deal or negotiate with Complainant, considering that Respondent never provided ocean transportation services to Complainant.” VCC responded:

“VCC objects to the vague and undefined use of the term “significant fact” as not setting forth a clear description of information requested. VCC objects to this Interrogatory as premature, seeking a compilation of information protected by the attorney-client privilege and/or work product doctrine, requesting a legal conclusion, and purporting to require VCC to describe written documents that speak for themselves. VCC further objects to this Interrogatory as requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control.”

VCC’s objections regarding INT10 are invalid for the same reasons as INT8 and INT9.

5. INT11 asks VCC: “Explain in detail the significant facts that you believe support Complainant’s assertion in Allegation 13 that ‘VCC shipped thousands of unique containers using COSCO, and COSCO assessed VCC with detention, and demurrage, and storage charges on hundreds of those containers.’ This should include identification of (1) any service contract that Complainant alleges it had with COSCO and (2) any COSCO bill of lading in which Complainant is listed as a shipper or consignee.” VCC responded:

“VCC objects to the vague and undefined use of the term “significant fact” as not setting forth a clear description of information requested. VCC objects to this Interrogatory as premature, seeking a compilation of information protected by the attorney-client privilege and/or work product doctrine, requesting a legal conclusion, and purporting to require VCC to describe written documents that speak for themselves. VCC further objects to this Interrogatory as requesting

VCC to describe documents that are publicly available and/or already within Respondent's possession, access, or control."

VCC's objections regarding INT11 are invalid for the same reasons as, *inter alia*, INT8 and INT9.

6. INT12 asks VCC: "Explain in detail the significant facts supporting Complainant's assertion in Allegation 16 that COSCO assessed Complainant directly with charges by identifying all charges Complainant alleges were made by COSCO. VCC responded:

"VCC objects to the vague and undefined use of the term 'significant fact' as not setting forth a clear description of information requested. VCC objects to this Interrogatory as premature, seeking a compilation of information protected by the attorney-client privilege and/or work product doctrine, requesting a legal conclusion, and purporting to require VCC to describe written documents that speak for themselves. VCC further objects to this Interrogatory as requesting VCC to describe documents that are publicly available and/or already within Respondent's possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO."

VCC's objections regarding INT12 are invalid for the same reasons as, *inter alia*, INT8 and INT9. And VCC has effectively admitted that no charges were assessed directly to VCC. Accordingly, INT12 should now be read as referring to charges assessed to RIM, not VCC. We do not understand what VCC means by "producing data," but as long as VCC provides the requested facts, COSCO does not object.

7. INT13 asks VCC: "With respect to Allegation 18, state in detail every significant fact upon which you rely to support the allegation that "COSCO refused to act reasonably by increasing the number of free days available to VCC even though COSCO created delays beyond VCC's control" by identifying every container Complainant is referring to in this context, and an explanation of any and all steps Complainant took in contacting COSCO."

VCC responded:

“VCC objects to the vague and undefined use of the term ‘significant fact’ as not setting forth a clear description of information requested. VCC objects to this Interrogatory as premature, seeking a compilation of information protected by the attorney-client privilege and/or work product doctrine, requesting a legal conclusion, and purporting to require VCC to describe written documents that speak for themselves. VCC further objects to this Interrogatory as requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control.”

VCC’s objections regarding INT13 are invalid for the same reasons as, *inter alia*, INT8 and INT9.

8. INT15 asks VCC: “With respect to Allegation 19, identify each and every shipment Complainant alleges COSCO ‘refused to divert . . . to less crowded ports and . . . extend the number of free days’ for before assessing charges, and the exact charges Complaint alleges were charged by COSCO.” VCC responded:

“Complainant VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO and will supplement its responses to this Interrogatory as discovery progresses.”

VCC’s objections regarding INT15 are invalid for the same reasons as, *inter alia*, to INT8 and INT9.

9. INT16 asks VCC: “With respect to Allegation 20, identify on a shipment by shipment and charge by charge basis the specific charges that Complainant alleges were assessed by COSCO and paid by Complainant ‘during periods of time in which such Charges were not just or reasonable because of circumstances outside the control of VCC and its agents and services providers.’” VCC responded:

“Complainant VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control. Subject to and without waiving the

foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses.”

VCC’s objections regarding INT16 are invalid for the same reasons as, *inter alia*, INT8 and INT9.

10. INT17 asks VCC: “With respect to Allegation 24, identify the specific date and time of each instance whereby Complainant was unable to return empty containers due to the alleged conduct of Respondent failing to clear empty containers.” VCC responded:

“Complainant VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory.”

VCC’s objections regarding INT17 are invalid for the same reasons as, *inter alia*, INT8 and INT9.

11. INT18 asks VCC: “With respect to Allegation 24, identify the specific terminal at which Complainant was unable to return empty containers due to the alleged conduct of Respondent.” VCC responded:

“Complainant VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses.”

VCC’s objections regarding INT18 are invalid for the same reasons as *inter alia*, INT8 and INT9. Further, the objection and response do not answer the clear and unequivocal call of the Interrogatory. The Interrogatory requests information about the alleged inability of drivers to access terminals and COSCO’s alleged “failure to allot additional free time or prioritize the evacuation of empties.” It would be shockingly inconsistent with Counsel’s obligation under

46 C.F.R. § 502.6(a), and render this a pure fishing expedition, if the Verified Amended Complaint was filed without knowing which terminals were being complained of. To the best of Respondent's knowledge, this information is not publicly available nor is it available to Respondent.

12. INT19 asks VCC: "With respect to Allegation 24, identify which loaded inbound containers (by container number, booking number, or bill of lading number) VCC was unable to pick up within free time." VCC responded:

"Complainant VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent's possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses."

VCC's objections regarding INT19 are invalid for the same reasons as *inter alia*, INT8 and INT9, as well INT18, that VCC should not have filed a complaint without knowing what containers it was talking about.

13. INT20 asks VCC: "With respect to Allegation 24, identify each instance (by date, location, and booking number, container number or bill of lading number) VCC alleges it was unable to return an empty container within free time." VCC responded:

"Complainant VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent's possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses."

VCC's objections regarding INT20 are invalid for the same reasons as INT19, and responses referenced therein.

14. INT21 asks VCC: With respect to Allegation 24, identify each instance (by date, location, and booking number, container number, or bill of lading number) each instance where COSCO “failed to allot additional free time.” VCC responded:

“Complainant VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses.”

VCC’s objections regarding INT21 are invalid for the same reasons as INT19, and responses referenced therein.

15. INT22 asks VCC: “With respect to Allegation 24, identify each instance (by date, location, and booking number, container number, or bill of lading number), where COSCO failed to “prioritize the evacuation of empties.” VCC responded:

“VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses.”

VCC’s objections regarding INT22 are invalid for the same reasons as INT19, and responses referenced therein.

16. INT23 asks VCC: Identify every instance in which Complainant attempted to use, and in fact used, COSCO’s FMC-recognized process for seeking relief for waiver/credit or refund of charges. VCC responded:

“VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges

assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses.”

VCC’s objections regarding INT23 are invalid for the same reasons as INT19, and responses referenced therein.

17. INT25. With respect to Allegation 32,³ identify each and every COSCO invoice Complainant alleges as its basis for the inability to understand the Charges. VCC responded:

“VCC objects to this Interrogatory as mischaracterizing the allegations in the Amended Complaint, as premature, and as requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses.”

VCC’s objections to INT25 are invalid for the same reasons as INT19, and responses referenced therein.

18. INT26 asks VCC: “With respect to Allegation 50, identify all significant facts upon which VCC intends to rely to show that COSCO forced “VCC to make alternate transportation arrangements for cargo that was supposed to be shipped by Respondent pursuant to the terms of their respective Service Contracts at substantially higher spot market prices or forgo shipping such cargo altogether.” VCC responded:

“VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses.”

³ The question has been corrected to refer to the intended Allegation (Allegation 32).

VCC's objections regarding INT26 are invalid for the same reasons as INT19, and responses referenced therein. Further, Allegation 50, asserts, as verified by VCC's COO and certified by Counsel, "The foregoing alleged illegal acts of Respondent have directly and proximately injured VCC by forcing VCC to make alternate transportation arrangements for cargo that was supposed to be shipped by Respondent pursuant to the terms of their respective Service Contracts at substantially higher spot market prices or forego shipping such cargo altogether." If VCC cannot produce any Service Contract, this Allegation must be withdrawn.

- 19. INT27** asks VCC "With respect to Allegation 50, specify for which shipments allegedly declined by Respondent, Complainant made "alternate transportation arrangements" or for which it had to "forego shipping such cargo altogether." VCC responded:

"VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent's possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses."

VCC's objections regarding INT27 are invalid for the same reasons as INT26 and responses referenced therein, including the need to withdraw Allegation 50 if VCC cannot provide supporting facts.

- 20. INT28** asks VCC: "For each shipment as to which Complainant alleges that it made "alternate transportation arrangements" identify and describe in detail the "alternate transportation arrangement" made by Complainant." VCC responded:

"VCC objects to this Interrogatory as premature and requesting VCC to describe documents that are publicly available and/or already within Respondent's possession, access, or control. Subject to and without waiving the foregoing objections, VCC will produce data sufficient to show the subject Charges assessed by COSCO, will produce documents responsive to this Interrogatory in discovery, and will supplement its responses to this Interrogatory as discovery progresses."

progresses.”

VCC’s objections regarding INT28 are invalid for the same reasons as INT26 and responses referenced therein, including the need to withdraw the VCC allegation if VCC cannot provide supporting facts.

21. INT29 asks VCC: “Explain in detail how Allegations 1-49 “directly and proximately injured VCC by forcing VCC to make alternative transportation arrangements,” as alleged in Allegation 50. VCC responded:

“VCC objects to this Interrogatory as not reasonably calculated to lead to the discovery of admissible evidence, seek a compilation of information protected by the attorney-client privilege and/or work product doctrine, requesting a legal conclusion, and purporting to require VCC to describe written documents that speak for themselves. Complainant VCC further objects to this Interrogatory as requesting VCC to describe documents that are publicly available and/or already within Respondent’s possession, access, or control.”

VCC’s objections regarding INT29 are invalid for the same reasons as INT26 and responses referenced therein, including the need to withdraw Allegation 50 if VCC cannot provide supporting facts.

ARGUMENT

FMC Rule 150 authorizes the Presiding Officer to compel a party to properly respond to Requests for Admission and Interrogatories. 46 CFR § 502.150. As detailed above, VCC has failed to properly respond to both RFAs and INTs propounded by COSCO and has hidden behind specious objections. Adequate responses must be provided; if they cannot be, the claims must be withdrawn.

CONSULTATION

The consultation between Counsel for VCC and Counsel for COSCO is described in the Introduction.

We expect such consultation to be an ongoing matter.

CONCLUSION AND REQUESTED RELIEF

Based on the foregoing, COSCO respectfully requests the Presiding Officer to order VCC to provide adequate responses to the RFAs and INTs discussed herein.

DATED: May 30, 2024

Respectfully submitted,
/s/ *Rebecca A. Fenneman*
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CERTIFICATE OF SERVICE

I certify that on the 30st day of May, 2024, a true and correct copy of the foregoing **Motion to Compel and Attachments** were served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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